7/09/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072, 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc., for Electric Service, and for Gas Service.

PUBLIC STATEMENT HEARING

DATE: July 9, 2025 at 6:00 p.m.

LOCATION: Westchester County Center
198 Central Avenue
White Plains, New York 10606

BEFORE: ALJ NICHOLAS PLANTY AND
ALJ JAMES COSTELLO

Reported by John Sheffield

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(The hearing commenced at 6:20 p.m.)

A.L.J. PLANTY: I call case 25-E-0072, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service, and case 25-G-0073, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

Good evening. As an initial matter, we want to inform everyone that we have a Spanish interpreter available who will provide real-time interpretation for people who want to listen and/or provide a comment today in Spanish. We have headphones available at the table to my right for those who want to use the interpretation services.

If you want to provide a comment, you will have to fill out a registration card available at the table to my left with our Department of Public Service Outreach staff.

Also, when giving your statement, you will have to pause after a few sentences so the interpreter can interpret your statement for the

record.

I will now stop for a few moments and go off the record to see if anyone wants to get a headset before I go on.

THE INTERPRETER: (Speaking in Spanish)

(Off the record)

(On the record)

A.L.J. PLANTY: Thank you; back on the record, please.

My name is Nicholas Planty, and with me is James Costello. We are two of the three administrative law judges for the Department of Public Service assigned to these rate cases. And we are presiding over this public statement hearing.

The public statement hearing is being held on behalf of the New York State Public Service Commission regarding the proposed changes in the electric and gas delivery rates and practices of Consolidated Edison Company of New York, which I will refer to as Con Edison.

Just to be clear, we are employees of the Department of Public Service. We are not here on

behalf of Con Edison. We are here to make a record of your statements for the Commission's consideration.

Before your statements, I will provide some background on these proceedings.

Con Edison filed amendments to its electric and gas tariff schedules on January 31st, 2025, proposing to increase its annual electric and gas delivery revenues for the twelve-month period ending December 31st, 2026. As of its April 10th, 2025 updated testimony, Con Edison proposes to increase its electric delivery revenues by approximately 1.6 billion dollars, an 11.3 percent increase in total revenues, or 17.9 percent increase in base delivery revenues, and its natural gas delivery revenues by approximately 349 million dollars, a 10.5 percent increase in total revenues, or 14.9 percent increase in base delivery revenues.

The actual bill impacts of these proposed changes on any particular customer class will vary based upon revenue allocation and rate design.

On or about May 30th, 2025, direct

testimony and exhibits responding to Con Edison's rate request were filed by DPS Staff, City of New York, Assemblymember Christopher Burdick, Assemblymember MaryJane Shimsky, Assemblymember Dana Levenberg, Amtrak, Alliance for a Green Economy, Consumer Power Advocates, Environmental Defense Fund, which later filed corrected testimony and exhibits on or about June 16th, 2025; Electrify America, LLC, Metropolitan Transportation Authority, or MTA; Natural Resources Defense Council, New York Energy Consumers Council, or NYECC; New York Power Authority, or NYPA; Public Utility Law Project of New York; State Senator Robert Jackson, the County of Westchester, the Westchester Municipal Consortium, and Department of State's Utility Intervention Unit, or UIU. And UIU provided corrected testimony on or about June 13th, 2025.

On or about June 24, 2025, rebuttal testimony was filed by Con Edison, DPS Staff, NYPA, MTA, City of New York, Assemblymember Burdick, NYECC, UIU; and, collectively, individuals Roger Caiazza, Richard Ellenbogen, Constantine Kontagiannis, and Francis Menton.

By letter dated June 24th, 2025, Con Edison filed a notice of impending settlement negotiations. If settlement negotiations are successful the parties to the settlement would file a joint proposal with the Commission. There would then be further briefing, public comment, and an evidentiary hearing before the case is submitted to the Commission for decision. The Commission could adopt the joint proposal, modify the joint proposal, or reject the joint proposal.

If settlement negotiations are not successful, the administrative law judges would issue a new procedural schedule for an evidentiary hearing and post-hearing briefs. The cases then may be presented to the Commission for a decision, or the administrative law judges may issue a recommended decision. If we issue a recommended decision, the parties would have an opportunity to brief their positions on those recommendations, and then the cases would be decided by the Commission.

Under New York State Law, the Public Service Commission must consider Con Edison's proposals and may adopt or reject them in whole, or

in part, or modify them.

At this time, the Commission must decide these cases by December 30th, 2025; however, that date may be subject to further extension. Regardless of how these cases proceed, the Public Service Commission will make the final decision regarding the Company's terms and conditions for providing electric and gas services.

This hearing is being held so you can provide your comments on Con Edison's proposals for the Commission's consideration. In making its decision, the Commission will consider the evidentiary record in these cases and the comments made at this public statement hearing.

The Public Service Commission has seven members: the chairperson, Rory Christian, and six Commissioners: James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova.

The topic of today's event is limited to these particular rate cases. This is not the proper forum to raise issues that are unrelated to the Company's rate case filings. To address specific

issues about your Con Edison account, Con Edison has materials that provide a dedicated phone number and email for customers to get assistance related to specific customer service and billing inquiries. That information is on the table that is set up outside, in the hallway.

Statements you make today will become part of the official record. The court reporter here will prepare a transcript of the hearing, which will be included in the record of these proceedings, so that your comments can be considered by all members of the Commission. When it is ready the transcript will also be available for public view on the Department of Public Service website.

Today's hearing is not a question-and-answer session. We are here to listen to your comments. If you do not wish to speak at today's hearing, but you would like your views included in the record, there are other ways to comment. You can submit comments on the Department's website, which is www.dps.ny.gov, or you can submit comments by regular mail to the Honorable Michelle L. Phillips, Secretary of the Public Service Commission, 3 Empire State

Plaza, Albany, New York 12223. Or there is also a toll free opinion line, which you can call at 1-800-335-2120, and that number is set up to receive comments from in-state callers twenty-four hours a day.

Information regarding these alternate methods is also available from our staff, who is, again, seated to my left.

Regardless of how comments are submitted, they will be given equal consideration by the Commission. According to the Secretary's notice for this event, comments must be received by November 21st, 2025, to ensure the Commission is able to consider them prior to the final decision.

If you would like to make a statement here today, and you have not done so already, please fill out a registration card. The registration cards are available, again, at the table to my left.

I will call speakers up one by one. Please speak slowly and clearly so that the court reporter can accurately capture your statement for the record. To the extent you wish to read a lengthy written statement, we ask that you provide an oral

summary or overview here today, and then submit the full statement in writing by email or mail.

Please be respectful when delivering your comments. This event is an official government proceeding. An appropriate level of decorum is expected of everyone. Shouting, swearing, interrupting speakers, and other disruptions to the hearing are not only discourteous, but also ultimately hurt our ability to make sure we hear from everyone who has taken the time to be here today.

Finally, we ask that you please silence your cell phones. I would also ask that when you come to speak, please state and spell your name for the record.

Our first speaker -- and I also would like to add, I sincerely apologize if I mispronounce anyone's name. I'll try my best to get it right. So our first speaker is Michele Hertz.

MS. HERTZ: Hello. Thank you for this opportunity to speak in person. My name is Michele Hertz, M-I-C-H-E-L-E H-E-R-T-Z. I'm a resident of Pocantico Hills, and I am the president of NYSUMA, New York Safe Utility Meter Association. Our

organization with members across the state advocate for an analog utility meter choice. This is because analog utility meters are the only proven safe utility meters available at this time.

I'm here to make three points: To the New York State Public Service Commission, I ask, please do not repeat past mistakes. In the mid-2000s, the PSC approved digital utility meters for use. This was done with no consideration for consumers' privacy, or testing for electrical fire safety, radiofrequency microwave radiation emissions, potential harmonic distortion, security risks, or the effect that this complicated computerized metering system would have on our rates and rate increases. The PSC should never approve rate increases for utility equipment that is not properly tested, vetted, and proven safe.

My second point is: What happened to all the millions of stimulus funds and approved rate increases that utilities have been collecting since 2009? Here is an example: in 2009, through rate hikes and Federal Tax Stimulus funds, Con Edison spent over 500 million dollars deploying hundreds of

thousands of first-generation AMR smart utility meters. This was done while they abandoned a planned relay system for preventing blackouts.

It was a terrible and dangerous mistake to abandon systems that have -- that would have protected the grid from blackouts, and more increase -- increases in rates went to removing and destroying millions of safe and accurate analog meters, the purchase and installation of millions of digital meters, the switch out from first-generation digital meters to newer digital meters, and the extensive infrastructure needed for digital utility meters, including surge suppression, safety equipment, capacitors, communication equipment, and more.

By the way, analog meters never needed any of these complicated and expensive fixes. This is especially frustrating because since 2009, utilities have been promising that smart digital meters would reduce our rates while our rates are skyrocketing.

My third point is utilities are using rate hikes to contribute money to and lobby our

elected officials. I would like to make a suggestion that the PSC make a rule that utilities may no longer use rate increases, our hard earned dollars, to lobby and contribute money to elected officials.

As an example, utilities have been spending endless amounts of money on lobbying and campaign contributions, especially to particular legislators, to convince them that smart meters are not terrible. There would have been no need for such extreme spending on lobbying by the utilities had digital meters not caused fires, injuries, privacy questions, security risks, and more.

Preparing for the future is going to take careful and thoughtful planning. This should start with the PSC, requiring utilities to make sure that essential safety equipment that is already in place is working properly, and that any new equipment is properly vetted for consumer and environmental safety, grid security, distorted harmonics, and for real grid resiliency purposes.

For years, utilities have ignored grid resiliency, which should have already been a priority for these utilities and for Con Ed, but instead their

focus has been on smart meters and data collection. A great deal of time and consumers' money has been wasted on technology that has no benefits to consumers. These kinds of mistakes should never happen again, and they have set us back almost two decades in grid resiliency. Thank you again for holding these hearings.

A.L.J. PLANTY: Thank you. Our next speaker is Christine Sculti.

MS. SCULTI: Good evening, and thank you for holding this important public forum. My name is Christine Sculti, I'm a Mamaroneck resident who has lived in Westchester nearly my entire life.

I rise this evening to strongly oppose the proposed current rate hikes, and urge the PSC to reject them. Westchester families and small businesses are already struggling with some of the highest property taxes and cost of living in the nation. Now we're being told that our utility must go up again, and this is all because Albany passed an energy law without a realistic plan to pay for it.

This rate hike is not an isolated utility issue. Rather, our elected officials in

Albany, Governor Hochul, the Democrat majorities in both Chambers, rushed through the Climate Leadership and Community Protection Act without the planning and tools needed to make it viable. This law imposes extreme deadlines and infrastructure demands on utilities like Con Ed, forcing them to implement costly upgrades on an impossible time line without proper funding or support.

The result: utilities pass these costs directly to us, the ratepayers. It's a financial burden disguised as progress. Let's not forget the decision to shut down Indian Point, an affordable, reliable source that once supplied twenty-five percent of our electricity. That decision by the State Democrats contributed to earlier cut and rate hikes of up to sixteen percent.

Sadly, the Democrat majority County Board of Legislators, including Mr. Jenkins, supported these hikes. So Westchester taxpayers continue to pay a heavy price. Clean energy is important but it must be done smartly, gradually, and makes our energy grid both reliable and affordable.

Sacrificing Westchester families and

businesses to appease a particular political agenda that's out of touch with reality is wrong. Tonight, I urge the Public Service Commission to reject these rate hikes, and I urge the Democrats' supermajority in Albany to govern responsibly. It's time they and the PSC act on behalf of Westchester residents, not the whims of special interests.

Thank you again for holding this public hearing. I greatly appreciate that, and all of the people who have come here to testify.

A.L.J. PLANTY: Thank you.

Next we have Justin Arest.

MR. AREST: Good evening. Justin. Arest, J-U-S-T-I-N A-R-E-S-T. I'm the Mayor of the Village of Scarsdale. And on behalf of Scarsdale, I strongly oppose Con Edison's proposed 2026 increases, which would yield approximately 1.6 billion, and 440 million dollars in extra revenue for electric and gas delivery, respectively. These hikes come on top of steep annual increases, leaving the average Con Ed customer paying about 154 dollars more per month, or roughly 1,848 dollars annually just compared to five years ago.

Despite Con Ed's claim that this is -- this is funding infrastructure and clean energy investments, ninety-six percent of the electric reliability budget is allocated to New York City, while Westchester receives only four percent despite funding being shared equally. This inequity, along with increases outpacing inflation, erodes trust in Con Edison, their operational efficiency, and casts doubt on the PSC's effectiveness in protecting consumers.

We join county leaders, including AARP New York, County Executive Jenkins, State Senator Mayer, Assemblymember Paulin, and the forty municipalities in our consortium, in urging the PSC to vigorously challenge this proposal, reject excessive hikes, demand greater accountability, transparency, and fair investment.

Our communities, especially seniors, fixed-income households, and small businesses, cannot shoulder the cost of infrastructure that neglects them, nor should they have to. Thank you.

A.L.J. PLANTY: Thank you.

Next is Timothy Foley.

MR. FOLEY: Good evening. First name Tim, T-I-M, last name Foley, F-O-L-E-Y. I'm the CEO of the Building and Realty Institute, Real Estate Trade Association. Our members are primarily based here in Westchester County and represent a broad spectrum of businesses, organizations, and individuals working in the residential housing industry.

We share many of the concerns expressed by others that the proposed increases of 11.4 percent for electric delivery rates, and 13.3 percent for natural gas delivery rates, are simply unaffordable at this time. Even worse, they have the potential to exacerbate the current financial distress for some of the apartment buildings that tens of thousands of Westchester residents call home, as well as undermine our regional goals for transitioning to cleaner energy through retrofitting of existing buildings.

Our members include shareholders within housing cooperatives, which are one of the very few opportunities for affordable home ownership in the county. These residents include seniors on

fixed incomes, young families who have enough security to no longer be renters, but not enough to afford condos or single-family homes, and middle class families who would have difficulty absorbing these unaffordable increases.

Our members also include those who own rent stabilized units. Many of these buildings are already teetering on the edge of being financially distressed after the 2019 changes to the rent laws. Based on the data provided each year by the Westchester County Rent Guidelines Board, they have consistently shown that utility costs for this type of housing have had yearly increases substantially north of inflation.

The past four years have been 6.1 percent, 5.1 percent, 7.2 percent, and 5.8 percent. So that's not only higher than inflation, but it is substantially higher than the two percent or so that is annually voted upon by the Rent Guidelines Board as the maximum allowable increases in rents each year.

Where will these apartment owners find the money to cover increases as proposed in this rate

case, if they're already scrounging to find the money for basic repairs?

Lastly, we have been heartened with how many of our members are property owners and building owners who are looking to be part of the transition to clean energy themselves. Some of them are doing so because of concerns over climate, recognizing that 33.6 percent of the average U.S. household's carbon emissions are directly related to housing. Others are doing so mainly to reduce their energy consumption and operate with lower utility costs.

But whatever the reason, many of our members made investments in energy efficiency projects, and they were successful. They got their consumption costs down. But those same projects where they were expecting to see savings from decreasing consumption have, instead, been swallowed up by the increases in delivery fees even before those proposed in the current rate case.

As such, we are very concerned about a cooling effect, no pun intended, on those looking to invest in energy efficiency and clean energy, if

these anticipated savings disappear at the same time that federal tax credits for the same type of infrastructure improvements are also disappearing.

For all of these reasons, we urge you to reject these sky-high rates and look for a much more reasonable increase that Westchester residents and businesses can afford. Thank you.

A.L.J. PLANTY: Thank you.

Next, we have Pascale Jean-Gilles.

MS. JEAN-GILLES: Good evening. I'm Pascale Jean-Gilles, P-A-S-C-A-L-E J-E-A-N - G-I-L-L-E-S. I first want to thank the Public Service Commission for hosting today's hearing on the Con Edison rate case. My name is Pascale Jean-Gilles, and I'm the chief of staff for Assemblymember MaryJane Shimsky. I also represent MaryJane Shimsky's office as a party to the current rate case.

Assemblymember Shimsky represents the 92nd Assembly District, which includes the Town of Mount Pleasant, most of the Town of Greenburgh, and the northwest section of Yonkers.

Since the proposed Con Edison rate

hikes were first announced, our office has heard from many constituents for whom the financial burden of these increases has become too great. Many of them have already taken steps to reduce their gas and electric usage, and to economize on their home expenses in other ways.

They have told us that they do not know how they can continue to pay these skyrocketing utility costs which continue to increase at a rate far beyond their income. They are not alone. Nearly 400,000 New Yorkers are now behind on their Con Ed bills by at least sixty days. The situation looks to become even more dire with Washington poised to slash heat assistance.

Despite these realities, Con Edison is seeking a double-digit rate increase in 2026, while it netted almost 2 billion in profits in 2024 and compensated its CEO by more than 16 million.

The tragedy is that all of this is happening on the backs of a locked-in customer base that has reached a breaking point. The Public Service Commission is tasked with ensuring access to safe, reliable utility service at just and reasonable

rates. The proposed increase is neither just nor is it reasonable.

With that, on behalf of our constituents, we strongly urge the Commissioners to honor their commitment and obligation to affordability, and to deny Con Edison's rate increase application. Thank you.

A.L.J. PLANTY: Thank you.

Our next speaker is Tara Framer.

MS. FRAMER: Good evening, and thank you for holding these hearings. I'm a little nervous. My story is a -- a bit more personal. I'm one of those people who are having -- oh, my name is spelled T-A-R-A, last name Framer, like a picture framer, F-R-A-M-E-R.

A.L.J. PLANTY: Thank you.

MS. FRAMER: I'm sixty-nine years old. I'm still working full time so that I can afford to pay my utilities. I'm a resident of Tarrytown for thirty-plus years. I'm an owner of a single-family home since October 2009. And keep in mind, as I tell you my story, my house is only 1,250 square feet, it's quite small.

Upon home purchase, I had a thorough, efficient energy efficiency analysis and it was -- my house was deemed very air tight and I also invested in a great deal of insulation. I converted to gas and installed a high efficiency heating system. And I was told or I -- or I responded to some advertisements by the utility companies saying that I could get some reimbursement for the conversion from oil to gas. And when -- when I tried to access the rebates, this is in 2010, I was first told that I would need to sign contracts, and that was a very frustrating process because I had no idea if I would get the rebates.

In the end, I did get a small rebate. Over the years the cost of -- for heating have soared and gone off the charts. Unbelievable expense, in winter I pay over 600 dollars a month to heat my home; and as I said, it's been well insulated, and blessed by a couple of different contractors.

Comparable sized homes in New Jersey, or the Tri-State Area, New Jersey, Connecticut, New York, the Tri-State Area, often pay half of what I pay for their gas and electric. On top of that,

about three years ago, I discovered all my gas bills were being estimated. Con Ed claimed that I had declined the smart meter, which I have no recollection of, but they were estimating my bills for the previous three to four years and despite promises --

A.L.J. COSTELLO: Just bear with me one second. Please, silence the cell phones.

MS. FRAMER: So I find -- found that my bills were being estimated, and despite promises by Con Ed, they have not given me any reconciliation for the actual versus the estimated. I was -- during COVID, I was denied assistance, even though I was qualified for Medicare and extra assistance, and I'm still experiencing repeated brownouts.

The bottom line is, I have some serious issues with the utility company, and I don't believe that double-digit rate increases are really warranted or deserved. Thank you.

A.L.J. PLANTY: Thank you.

Next we have Rita Tobin.

MS. TOBIN: Thank you. My last name is spelled T-O-B-I-N. I'm actually here on my

behalf, and my husband, Austin. I think we're pretty typical. I live in Chappaqua, New York, where we have lived for twenty years. We are in our 70s, but we are both employed full time and we both operate businesses. My husband is a general contractor. I write grants for a not-for-profit, and I'm also an attorney.

I think we're typical among others for many reasons, but also because we paid, and I checked the numbers this morning, 18,000 dollars last year for gas and electricity. We are not rich. Every year our gas and electricity has increased, as have the charges for all of our neighbors. It's not just my story, it's our story.

This morning, or the last couple of days, I looked up the 10-Q for Con Edison. Now, I'm not aware on a technical level as so many of the speakers are, of what Con Ed is doing with the money. But I do know that they filed a 10-Q, and they predicted, not a deficit, not breaking even next year, but increased profits and benefits for shareholders. And they recorded an increase over the same quarter, first quarter of last year of 50

million dollars in net quarter income, or 11 cents per share.

This did not sound me as -- to me as though a company was in trouble, and was needing a rate increase, certainly not on the scale that's being described. I also found out, someone else has just mentioned, that their chairman, Tim Cawley, last year was paid 16 -- 16,176,871 dollars, and their president got almost five million.

That is exponentially higher than the income -- the salary of the Governor of the State of New York. So once again, it did not seem to me that that Con -- that we should be paying, and we should bear an increase in our rates, which are already sky high, when Con Ed is paying off its shareholders, and paying its chief executives, its C-suite so much money.

Con Ed is a private corporation, but it's accountable to the public, which is why we are here. And I thank you for holding these meetings tonight. But it appears that once again, Con Ed seeks to transfer its costs, including perhaps some laudable projects that it's engaging in, to me, to my

neighbors, to my husband. We are already paying 18,000 dollars a year. That is equal to twenty-five percent of our mortgage and taxes. So essentially, we're paying another twenty-five percent just to keep the lights on.

In fact, people have very few choices. If I don't like the prices at Target, I can go someplace else. Most of us are pretty much stuck with Con Ed. So in other words, we are captive consumers. We don't have the choice of saying, Con Ed, go away, you're too expensive, we're going to go (audio interference).

We are (audio interference) Con Ed shareholders, their executives, and their projects, many of whom I heard about for the first time tonight, seem to be ill-thought, and I think that as a seventy-five-year old, who are fully employed, living in a modest six-year-old home, we should not have to subsidize increased profits for shareholders, let alone the CEO's salary, stock options, and deferred compensation.

On the contrary, I think Con Ed has a duty to serve us. I think Con Ed has a duty to

assume some of its costs rather than transferring them to the public. And from what I've heard tonight, I think Con Ed needs to think through some of its projects, because it looks to me as though there is a lot of waste.

I want to thank you again for holding this meeting, and for listening tonight. And I'd also like to thank Chris Burdick, my Assemblyman, who has spoken, I've spoken to him about this many times, and he has been very helpful. Thank you.

A.L.J. PLANTY: Thank you.

Next is Jaye Pedro Beledo.

MR. BELEDO: I won't -- I won't speak at this time. Thank you.

A.L.J. PLANTY: Margaret Carol Beledo?

MS. BELEDO: My name is Margaret Carol Beledo, that's M-A-R-G-A-R-E-T C-A-R-O-L, and then Beledo, B-E-L-E-D-O. I am actually speaking not only for ourselves, we are -- we are neighbors. And -- and we live in Northwest Yonkers, and we are paying through the roof, more than -- we've been in the same house for seventeen and a half years, and it's -- we can't afford it any longer.

It's -- everything is doubled and that is the delivery. And the CEO is making 15 million dollars -- nearly 15 million dollars a year. So this is a for-profit company. Okay. And I'm just going to -- I brought letters from our neighbors that I will hand in, but I'll just read one.

And thank you very much for these hearings.

To the New York Public Service Commission, thank you for holding this meeting with citizens affected by Con Ed, and the cost of its services. So I must ask you, how is Con Ed being a delivery system monopoly that is for profit, a service to our citizens? Remember, monopoly means no competition in a capitalistic system -- capitalist system. How is the CEO of Con Ed, Tim Cawley, making fifteen million a year in service to our system -- in service to our citizens, comprised of salary, bonuses, and includes company stock and options?

How is an electric bill of over 700 dollars a month for a single mother of one child living in a small house, working as a care provider to an autistic woman within the Medicaid system,

meaning doing work others won't, low wages for her, and placing both mother and child on Medicaid with high co-pays; how is Con Ed serving that citizen and others like her? We are citizens begging you as our leadership with -- with the clearest power to affect change, to fix this abuse of power. Sincerely, Ann Gartland.

And right now, she couldn't be here because her husband is in the hospital with cancer. Okay. Thank you very much. I'll pass the rest I'll turn in. Thank you.

A.L.J. PLANTY: Thank you.

The next speaker is Karen Brown, Mayor.

MS. BROWN: Good afternoon. My name is Karen Brown, K-A-R-E-N B-R-O-W-N. I am the Mayor of the Village of Tarrytown. The Village of Tarrytown is party to the (indiscernible) case, and also the Village of Tarrytown strongly opposes the excessive and inequitable rate increase. Each week we receive several turn-off notifications, energy bills are already burdensome and threatens the housing security of many of our residents.

It's making Tarrytown, a once economically diverse community, unaffordable to low- and middle-income residents. Tangential to the rate increase is the issue of battery energy storage systems being encouraged by the State to support the Con Ed grid during peak times. Many communities are banning them outright. In my community, we know we're committed to sustainability, many residents are asking: Why should we assume the risk as low as it's purported to be, if other communities won't?

Please consider, as part of a new rate structure offering a rate reduction or credit for customers and communities who host the systems that improve the grid for the larger community. Thank you.

A.L.J. PLANTY: Thank you.

Next, we have James Nolan.

MR. NOLAN: Hi. Good evening. I'm Westchester County Legislator James Nolan, from District 15, Yonkers, Bronxville, and Eastchester. My last name is spelled, N-O-L-A-N. Thank you for doing this today.

We, at the Board of Legislators, have

been conducting our own public input sessions for the last couple of months now, and it's -- it's been quite a -- quite a journey. We're going to continue to fight this together in a bipartisan effort. But you know, going back to when I was first elected four -- almost four years ago, these -- these rates have been increasing, or have been -- or proposing, and it's been a big concern.

Every day on social media, I'm sent posts of people's bills, phone calls, texts, emails, whatever it is, I'm getting a minimum of 800 dollars a month, I have seen as high as 4,000 dollars a month. You know, these are working-class people, everyday citizens that are just trying to get by in a very expensive state right now.

And for Con Edison to propose this, you know, it's absurd. We have a point where Indian Point was shut down. That is a proven fact. After we shut down, Con Edison found a way to sneak its way in, and now they're going to continue to do that. They don't care about these residents. They don't care about these constituents. They don't get the everyday calls. They don't have to deal with it.

You know, they turn them away, and then they come to the elected officials.

You know, they only care about their dividends. And if you go on their website, it shows that their stocks are going up every year for the last forty-five years now. This is a problem. They care more about profits than actual constituents that we represent on an everyday basis. I get so sick of telling the constituents: I'm sorry I can't help you with your Con Ed, but then I turn around and Con Edison is pretty much bragging about what they want to do, and they feel like a monopoly -- well, they are a monopoly.

Just recently, last week, I sent a letter to our Congressional members asking for them to subpoena Con Edison's CEO, presidents, top officials, to come to the Congressional floor and state every single answer that we need to know why they feel the need to do these increases. We need answers. But the answer is not to -- to piggyback off of political agendas or off the constituents.

You know, what they need to do is rather than actually increase -- instead of

increasing, they need to decrease, or hold it steady so at least people can catch up. We are urging, begging for the Public Service Commission to not allow this to happen.

I -- like I said, I had a constituent, who, I will never forget this story, come to our last public info session and tell us how she was -- fell on hard times, her daughter just had surgery from cancer. All right, she fell behind on her Con Edison bill, they shut off her power where the bed that her daughter needed could not be operated.

She called Con Edison, spoke to several people, after being on the phone with them for over an hour, and two hours, they got back on the phone and said: Yeah, we'll reduce by 50 dollars. What is that supposed to do for a woman that's trying to take care of her daughter that just beat cancer?

I'm asking you and begging you to please consider denying these requests, and if possible, you know what, asking these CEOs to step down, if they feel -- that they feel the need, that they can do this and it's not going to impact. We will not be quiet about this. These are our

constituents and we will continue to represent them.

And once again, I thank you very much for conducting these meetings tonight.

A.L.J. PLANTY: Thank you.

The next speaker is Peggy Miller.

MS. MILLER: Yes. Thank you. Appreciate you having this session to hear comments. The earlier speaker made some references about Democratic politicians, and I just want to comment that I believe every Republican in the New York Congressional Delegation voted to defund clean energy that was already passed by the Congress.

We need clean energy. If you have kids or grandkids, you need solar, you need wind. We can't keep living off oil. And I understand some of the money Con Ed is asking for is to enable their delivery system to handle more clean energy. That's a good thing, but after making 12 billion, with a "B", dollars, that's a billion dollars a month in gross profit last year, it's rather unseemly to say the way to pay for that is to hit the ratepayers.

They are a government monopoly. I have no other choice as to how to get my energy

delivered. I would hope that something comes with that obligation that they have to invest in the infrastructure to keep their services running. In fact, I believe PSC's website says that the PSC is charged by law with setting rates, and ensuring New York State's utilities provide adequate service.

It doesn't say that you're to set rates in order for the utility to provide service. It says you have two obligations, set rates that are reasonable for consumers, and ensure the utility is providing adequate service. As we need more wind, solar, and alternative energy connected to our grid, we need our monopoly delivery provider to be ready to do that with $12 billion in profit. That's 33 million dollars a day.

I think they have money that they could choose to spend to maintain an adequate system of infrastructure as we grow into clean energy, and to ask ratepayers to pay eleven percent more for delivery -- my delivery is already three to four times the cost of my energy, three to four times to get it to my house. I don't know who is figuring this out at Con Ed, but they're not doing a very good

job.

So please don't make an even currently bad situation -- and I paid 600 dollars a month, a single-family home in Westchester for -- to just heat it in the winter and to try to keep it cool in the summer. So I would implore you to think about your job as protecting the ratepayers who don't have a choice, and doing something that makes Con Ed live up to its obligation in exchange for being a monopoly provider. Invest in your own network and get it up to adequate in a new world that's different from the one that they might have started in.

Thank you for taking the time to listen.

A.L.J. PLANTY: Thank you.

Next is Mellicent, Dyane.

MS. MELLICENT: Good evening. I'm Mellicent, M-E-L-L-I-C-E-N-T, first name Dynne, D-Y-N-N-E. Again, also thanks for holding these meetings. I'm a (audio interference), I recently moved here a couple years ago from Brooklyn, New York. And when I moved in and saw my -- my Con Ed bill compared from Brooklyn to Westchester County, I

literally almost had a heart attack.

And you know, I also strongly, strongly oppose these Con Ed hikes. I hope I come with a bit of good news. I was able to become eligible for the NYSERDA program -- oh, sorry. I'm short. I was able to become eligible for the NYSERDA Program. And I pray to God that doesn't go away. The NYSERDA program is a New York -- New York State initiative, you know, for -- for solar power. And so becoming eligible, I had a solar company come and meet with me.

Got amazing, really great rates, like 130 bucks a month with a 2.9 percent interest rate, my -- it was going to cost 40,000 for the solar panels, but I got 20,000 from the State, and I'm getting another 5,000 -- I mean, from the Federal, and another 5,000 from the State. So you minus that 25 grand, and that's exactly basically what I'll be paying for my solar panels.

I've noticed, and here is my bit of good news, that I compared my bill the winter of 2023 when we moved in, because it takes about a year for the solar panels to kick in, and the following year,

and I'm also part of that EAP program, and please, Con Ed, do not get rid of that. Because I am part of that, you know, lower income, what have you, family housing. And without the EAP program I would be, pardon my French, screwed.

Now, let me explain to you the Solar Panel Initiative, what has helped me, my bill, the winter 2023 was $698. I also almost had another heart attack. I literally fell off my chair. Then when I got in I met -- and I became eligible like I said, with the solar company, and started doing the whole process; my bill, the following year, was $229.

So that's how much money I am saving for these solar panels. I urge Con Ed, there has to be another way. Whatever money that they need to do, there has to be another way that they can find it without pay -- without charging the customers, without charging the citizens, without charging the communities.

My neighbor who's just moved in like six months ago, two houses down, he actually sent me a text -- this is a true story -- Mellicent, what do you pay for your Con Ed? And I was like, I pay like

this and this, between 150 and 239, you know, a month. But that's because I guess -- his house is big, bigger than mine -- they paid 1,100 dollars in one month. And I said, oh my God.

And I told him about the NYSERDA program. I told him about the EAP program. Not everybody is going to be eligible for that, hopefully they can, but those things there has helped my bill immensely, because I told you 698 to -- to 220, that's an astronomical decrease.

However, that does not mean that I -- that I agree with these hikes because Tim Foley mentioned something about, you know, the deliveries went up, yeah, that was the issue. I dissect my bill and I look at it every month and I see, you know, the -- the solar panels are really kicking in and really helping me, but not everybody can afford to do that.

Therefore, I say to you again, there has to be another way for you guys to be able to, well then, to be able to do whatever they -- they need to find to -- to do whatever they have to do.

Okay. So lastly, I strongly oppose

again these hikes, and that you can find another way, I also beg the Department of Public Service, I beg, beg, beg you. As the other -- the other gentleman said, my speaker over here, he said: Don't allow these hikes. Deny their request. Find other means. There's money out there. Trust me. There's money out there. Just don't charge everybody behind me, or myself, or anybody else that's coming.

There's hundreds of people, thousands of people, thousands of people that this will affect. And I urge everybody who is listening and watching, think about that. Thank you.

A.L.J. PLANTY: Thank you.

The next speaker is Susy G.

MS GEVARGUIZE: Good evening. My last name is Gevarguize, and that's why I just left it at G.

A.L.J. PLANTY: Do you mind spelling that for the record, please?

MS GEVARGUIZE: G-E-V-A-R-G-U-I-Z-E.

A.L.J. PLANTY: Thank you.

MS GEVARGUIZE: So I'm here again because we're still having issues with Con Edison.

And it's not just my issue, it's everybody's issue. I can't understand how they can come to the Public Service Commission requesting a double-digit hike when the middle class, which doesn't -- I know myself, not eligible for any type of assistance, I don't receive a double-digit pay increase. I don't know of any other thing that raises as quickly and as much as Con Ed does. And it is a monopoly.

I don't understand how they could put on their bill, which I'm here, not just on my behalf, but on my church's behalf, on my community's behalf, on my neighbor's behalf, where you have a senior citizen who doesn't turn on the lights because they receive 285 dollars from Social Security a month, and their usage on electricity is $3.18, but the delivery is $45.12.

What more can they do? They don't have the option of getting another delivery company, so it is a monopoly, and everybody is required to keep their temperature at a certain degree. You can't reduce things any more than they are. On behalf of myself personally, approximately three, four years ago, maybe five, I had an issue with Con

Ed and my billing system. I was sent something that totally didn't make sense. I tried dealing with Con Ed, wasn't able to get anywhere.

I contacted the Public Service Commission, and I still have those letters. It took the Public Service Commission approximately five to six months, trying to understand how Con Ed was billing me the way they were billing me. And finally they came to me and said, listen, after five or six months, Con Ed was claiming I owed them 3,700 dollars. That's over 700 dollars a month.

They couldn't explain it to the Public Service Commission, and with me trying every week became another job that I had to endure. The Public Service Commission came to me and said: Con Ed has agreed to just wipe the slate blank if you agree also, which I did.

I don't really have another choice. But what happened to all the money that I paid up until that point? Here we are years later. I came into another problem. One of their -- understanding your bills is merchant function. A charge that covers costs associated with procuring electricity,

procuring and storing natural gas, conducting credit and collection activities, and managing uncollectible accounts.

If you really look at their bills, there's no accountability. I don't actually even know how much I'm using and what they're billing me for. Yeah, they break it down in some words, and some of them sound very repetitive to me. But who has done an investigation to what they're actually charging us, what they're actually spending, and how they could demand such hikes.

And as you've heard from so many people, with all the profits that they have, not only should the Public Service Commission deny their request, something needs to be done to roll them back. We cannot afford to sit in the dark or not have heating and have our pipes break. Thank you.

A.L.J. PLANTY: Thank you.

Next is Fiona Lazar.

MS. LAZAR: Hello. My name is Fiona Lazar, and it's F-I-O-N-A L-A-Z-A-R. Thank you for giving us the opportunity to speak. I am the board president of a co-op in Sunnyside -- called Sunnyside

Manor in Yonkers, New York. We have just gone through a forty-four percent maintenance increase. We currently have so many shareholders forced to move out. Single mothers, seniors, just people on limited income. We just urge you, on their behalf, please, to deny their request. Thank you.

A.L.J. PLANTY: Thank you.

The next speaker is John Isaac.

MR. ISAAC: Good evening. My name is John Isaac, I-S-A-A-C. As we are hearing from all the speakers here, the Public Service Commission, it stands for the interest of the public. What's been happening in Westchester in the past years with the Con Edison is not affordable for many families that I am representing in the community.

The rate hike, which is becoming close to like eleven percent between the gas and the electric is not sustainable. With the changes of heat factors and also various things happening, the consumption of energy is going through the roof. As a private company, what level of auditing and -- is happening from the Public Service Commission to make sure that the bills that the average citizens of

Westchester is paying is being utilized for the benefit of sending these electric and the gases throughout Westchester.

The next county, which I used to live for a short period, New York State Electric, NYSEC, has much better rates compared to the Con Edison. The monopoly in the Westchester County is the reason why the residents of Westchester -- has to pay these higher rates.

I urge the Public Service Commission to look into the public's interest and make sure these hikes are not in the best interest of the residents of Westchester, or anywhere around in the counties, even including the New York City, so this rate hike has no justification going forward.

Thank you for giving this opportunity this evening.

A.L.J. PLANTY: Thank you.

Next is Jewel Williams Johnson.

MS. WILLIAMS JOHNSON: Thank you. My first name is Jewel, J-E-W-E-L, last name is Williams, W-I-L-L-I-A-M-S, space, Johnson, J-O-H-N-S-O-N. I proudly serve as County Legislator

for District 8, which includes the City of White Plains, Town of Greenburgh, and the villages of both Elmsford and Tarrytown. And for all of you, who are not in District 8, welcome to District 8.

I rise today in strong and unequivocal opposition to Con Ed's proposed rate hikes. These increases are not only unjustified, they are, frankly, unconscionable. At a time when families across Westchester and New York State are already stretched absolutely thin, the last thing they need is a higher utility bill. What our residents deserve right now is relief, not more financial pressure, not more anxiety when the bill arrives each month.

Let's call this proposal exactly what it truly is, a cash grab disguised as progress. Con Ed is not a struggling company. Their executives are paid handsomely, we heard, in the millions in salaries and bonuses, while working families, senior citizens on fixed incomes, single parents, small business owners, non-profit organizations, including churches, are being asked to foot the bill.

Ratepayers are already paying way too much. To raise rates now is not just bad policy,

it's an act of disregard for the real struggles people are facing every single day.

Con Ed claims these hikes are needed for infrastructure improvements, but infrastructure maintenance is the bare minimum of what a utility company should do. It's a basic expected cost of doing business, not a justification for soaking the public.

And let's be honest, Con Ed has operated just fine under current rates, posting strong profits, year-over-year. They've managed upgrades and maintenance while padding their bottom line. If there's a shortfall, maybe it's time for executives to tighten their belts, not force ratepayers to empty their wallets.

Let's also remember this, Con Ed is a protected monopoly, unlike everyday New Yorkers, they don't face the risk of competition. Their profits are virtually guaranteed. And that's exactly why you, the Public Service Commission, exist: to serve as the people's backstop. You are not here to rubber stamp corporate demands. You're not here to protect the -- you're here to protect the public interest, to

ensure fairness, and not to hold -- and to hold monopolies accountable.

So let me say that again. You're here to rubber -- you're here not to rubberstamp corporate demands. You're here to protect the public interest, to ensure fairness, and to hold monopolies accountable.

So I ask you: Will you stand with the people who are choosing between heat and groceries, electricity and rent? Or will you stand with a multi-billion-dollar utility company that sees New Yorkers as nothing more than a line item?

We, the Westchester County Board of Legislators and County Government should not have to organize lawsuits. We should not have to fight for in-person hearings. We should not have to demand that our voices be heard. You should be protecting ratepayers without us begging you to do it. That is your mandate.

This is your opportunity not just to deny a harmful rate increase, but to rebuild public trust. Say no to this proposal. Say yes to fairness, yes to transparency, and yes to the people

you are appointed to serve. We all deserve a utility company and a regulatory body that puts people over profits. Thank you.

UNIDENTIFIED SPEAKER: Amen.

A.L.J. PLANTY: Thank you.

Next, is Pauline Quinones.

MS. QUINONES: Pauline Quinones, P-A-U-L-I-N-E Q-U-I-N-O-N-E-S. And I rise in strong opposition to these percentage hikes. I probably represent the few of us, or maybe there's more of us than I can even imagine, that can't even take advantage of any of the alternatives that are out there. Possibly for me, it's because of the structure of my home and not having an area or space that would provide some alternative energy resources.

And as someone who is technically protected under the Americans with Disabilities Act, but can still work. There are things that I just can't cut back on. In the summer months, in the spring months, as someone who has a high allergy to pollens, my windows are never open. The only fresh air that I receive is through my central air conditioning. And I know that sounds like a super

luxury, but before we had that installed, I couldn't even breathe or function during the summer months.

My entire life, up until the time I was twenty years old, I was hospitalized every year in April and May, and until recent developments in just medicine, we realized that I had an increasingly high allergy to pollens. And it was no wonder that, you know, all my life when, you know, the spring cleaning, let's open up the windows. Let's open up all the school windows and things. I was hospitalized for weeks on end.

So when someone says to me that you're going to be getting a percentage increase on something that I can't even control, it hurts, because I'm already trying to maintain a household on my own. So these percentage increases hurt someone like me who I can't get solar panels. There isn't a solar farm nearby that can help defray costs.

So there are a lot of us that might be in this unique situation. And you know, we don't qualify for heat programs, or assistance, because we happen to, you know, choose careers that don't really qualify us for those programs. And we're still in

them. We're not retired. We're active.

So this hurts when you start to look at just the meager percentage increases that you might get in a year, versus this increase, it's hard hitting. I know that over the years I keep looking at my bill, hoping that at some point maybe it'll go down. Maybe if we don't turn on the lights. Maybe if we keep this off, and yet, and still, it just keeps rising.

So I urge you to think about the average person who might be trying to make it on their own. The average person that, despite their disability, continues to work, but still can't really cut down because then they can't function. This is unattainable. This is not something that we can keep going forward with. That unknown hurts.

And yes, I've heard here, there is a lot of anxiety that goes into opening up that email that tells you that your bill is now 100 dollars more than it was last month, and maybe 2- to 300 dollars more than it was in the year before, around the same time, with the same usage.

So I ask you to really think about

those of us that can't, that do not have those other resources to count on to help, because we're the ones who were hurting, while other people might be getting discounts and they're able to defray their costs, my price keeps going up because I can't.

There's nothing else I can do but come to you and ask you to put a halt on these percentage increases, because I'm the average person that has no other viable alternative. Thank you for your time.

A.L.J. PLANTY: Thank you.

Next speaker is Leah Hehr.

MS. HEHR: I'm just going to be a minute.

A.L.J. PLANTY: That's okay.

MS. HEHR: Okay. Good evening. My name is Leah Hehr, spelled L-E-A-H H-E-H-R. I am a mother, and a small business owner, and proud resident of the Battle Hill neighborhood of White Plains. I think everybody else here tonight has spoken very eloquently about all of the reasons that the rates should not be raised. And so I just want to add my voice to that and say that I oppose the rate hikes. Thank you very much.

A.L.J. PLANTY: Thank you.

Next, we have Dyan Petrillo.

MS. PETRILLO: Hi. Thank you for this -- oh. It's D-Y-A-N P-E-T-R-I-L-L-O. Okay. And thank you for having these hearings tonight. I'm a little nervous because I did not plan on speaking.

A.L.J. PLANTY: That's okay.

MS. PETRILLO: All right. So I'm going to try to make sense of something that does not make sense. With regard to Con Ed, of course. And I oppose the hikes.

In -- on November -- in November of 2024, I smelled gas and called Con Ed. They shut the gas off, never looked around to shut it off. In the -- in November 14th of 2024, a month after, I had hired a plumber, Con Ed came and put the gas back on.

After that I only received bills for electricity from Con Ed, not for gas. So every month I would call them, and for the first two months they didn't believe that I was a Con Ed customer, even though I gave them my account number.

So I just kept paying the electricity bills, and I was wondering, am I going to get a 4,000

dollar bill one day when they wake up and realize that I am a customer? So it took phone call after phone call, and anxiety after anxiety, finally, I went to Paul Feiner, my supervisor from Greenburgh.

He was able to get me bills. But here's the thing. Every time I called, I was told by multiple Con Ed representatives and supervisors that they did not know how much I owed. Evidently, the new meter that they put in was not giving a reading. So for six months I did not get gas bills. How am I supposed to know now that the gas bills, I'm still not getting, but that I -- the gas bills that I did get in a stack with a turn off notice, by the way, and late charges, which is insult after injury.

So I called again last week and they've extended my turn-off notice now from June 30th to July 30th, but I don't think they deserve a rate hike if they cannot tell an accountholder how much you owe in gas usage charges for six months, when you constantly call to try to pay the bill. I was calling them to try to pay.

I can't afford it. I'm a single-income family. I mean, they hold no accountability.

And then to give you late charges and a stack, which, like I said, Paul Feiner was only able to get that, or I would still not know.

So I really don't think they know what they're doing. But I was told last week that they have now implemented a new rule. If your bill is greater than ninety days they will credit you. So they credited me my first November bill for 146 dollars. But I still have a 1,494 dollar bill for gas charges that they could not provide me with the amount of money or usage, and a turn-off notice.

So gas hikes, or any kind of energy hike is unaffordable, especially in Westchester. But I think that the company itself, their representatives and their supervisors that said they would give me call backs, and I never got one call back. This turned into a full-time job just to pay my bill. So I don't think they deserve anything until they fix their system. And I want someone to take a look at the meter. I wasn't even told I had a new meter.

I don't know what else to say. It's -- it's unacceptable. And they're not the

nicest. Their customer service department, and their supervisors could really use a refresher course in how to -- you know, I'm a customer, but they didn't make me feel that way. They made me feel bullied. And in a way, I am bullied because there's no place else to go, which I tried to explain to them.

So I don't know what to tell you, except that I'm -- the clock is ticking, and I'm not going to let this go. My turn-off notice is for July, but I -- I have no other place to go except for this hearing or to the media. And I'm stuck. And they should know how much you are using per month in usage and amount so, you know --

A.L.J. PLANTY: Not to stop you --

MS. PETRILLO: -- do you understand what I'm saying.

A.L.J. PLANTY: Not to interrupt, but you can go to our staff at the table to find out how to get information, how to file a complaint with the Department of Public Service.

MS. PETRILLO: Okay.

A.L.J. PLANTY: I didn't mean to interrupt. If you have more to say --

(cross-talk)

MS. PETRILLO: No, I have nothing else to say because this is just -- it's ridiculous that they're asking for a hike when their accounting department is six months behind, because evidently they put in meters that had glitches. I have asked Con Ed to pull all of the calls that I made to them, and they refused. And they told me if I wanted those phone calls pulled, I needed to show up with a subpoena.

A.L.J. COSTELLO: The Department of Public Service will --

MS. PETRILLO: Thank you, again.

A.L.J. COSTELLO: -- will intervene in that, so.

MS. PETRILLO: Okay.

A.L.J. PLANTY: Thank you.

Next is Leonard Lolis.

MR. LOLIS: Hello. I'm Leonard Lolis, L-O-L-I-S, everybody calls me Lenny. Listening to everybody, I really don't know how much more I can say, except that these rate hikes are really not understandable. Con Ed says they need these rate

hikes, primarily, because of infrastructure upgrades; however, yet, if you look at what has happened recently, they had scheduled brownouts. They've reduced voltages on lines to cause damages to equipment. People don't even realize that in their neighborhood they're like -- their AC shuts off. So they have a 220 AC, and all of a sudden the voltage drops. And then weeks later, they have a lot of problems with their AC.

This I've heard numerous complaints. So in White Plains, I'm a candidate for mayor, so I'm walking the whole city. And as I walk around, I would say, arguably, the number one complaint is the electric bill charges.

And what I don't understand also is that they no longer have to worry about gas build-out because that has been reduced, pretty much that has stopped. So they don't have to worry about that anymore. They also -- the residents were forced into -- unless they opt -- opted out, they had to preemptively opt out of the Sustainability Westchester Program, which, that was supposed to help pay for sustainable power, yet, Con Ed also wants

rate hikes to do sustainable power.

Yet people opted into this, paid more money, voluntarily, on their bill. Some don't even realize it, because if they didn't opt out, they're in, and they're paying more for their electric bill. And that was supposed to pay for sustainable power, yet Con Ed is asking for more money for that.

That's -- that's really what I have to say. So I am opposed to any of the rate hikes. I think there's so much more Con Edison can do with the other issue that I just want to bring up. It's funny, when anybody moves into the area, they get very excited when they realize that they ended up moving -- buying a house, and moving into New York, and they bought a house in Putnam and not Westchester. And the reason why they're excited is, -- it's they don't have to pay the Con Ed bills.

IN UNISON: Um-hum.

MR. LOLIS: And that's just terrible. It really is terrible. So I'm opposed to the rate hikes. Thank you very much.

A.L.J. PLANTY: Thank you.

Next is Shanae Williams.

MS. WILLIAMS: Thank you. Good evening. My name is Shanae Williams. Do you need me to spell it, or you're good. You got it.

A.L.J. PLANTY: If you could spell it, please.

MS. WILLIAMS: All right.

A.L.J. PLANTY: Just for the record.

MS. WILLIAMS: S-H-A-N-A-E is my first name, last name is Williams, W-I-L-L-I-A-M-S. And I am a County Legislator, I represent District 16, which is a part of Yonkers, Northwest Yonkers, the Riverside -- River front, Downtown Yonkers. And you know, when people think of Westchester County, they think, well -- they think everybody there is rich, and that's just not the case.

I have a very diverse district. I represent people who are -- some people who are at the very lowest level of the socioeconomic status, living in poverty or at the poverty line. And folks who are doing very well, who you know, are very well off, and upper-middle class, but regardless of where you go in Westchester County, regardless of the communities that you -- you tap into, there's one

thing that everyone have in common, and that is Con Edison and these very expensive rates currently, right.

People -- one of the -- the most complaints that I get as a county legislator, I have only been there for a year and seven months, and one of the biggest complaints I get is about Con Edison and how they can't afford to pay it. I can't even afford to pay it, and I live in an apartment building, in a one-bedroom apartment, and I cannot afford to pay -- one month this year, my Con Edison alone was 1,000 dollars, and I'm like: What the heck? I'm barely there, right?

And I've heard from -- from constituents who come out and tell me that even when they're away for weeks at a time, they'll come back and their Con Edison bill will be so high they are -- they don't understand it, everything is unplugged. They're not there. So something doesn't add up there, right?

It's -- it's your guys' job at the Public Service Commission to make sure that you're looking out for the -- the people all across --

across New York State. My colleague, Jewel Williams Johnson said it very well, and that is not to -- when you are making your decision to put the people of New York State, the people of Westchester County, first. Not these -- not this very specific monopoly of a corporation that is not dying for -- for funds. They're doing pretty damn well.

All right. Let's -- let's think about that. We have people that are struggling, senior citizens, veterans, small business owners, because this doesn't just affect our residential communities, right. This affects businesses all across Westchester. So we have to keep that in mind when we make this decision. And you know, obviously I'm advocating for no increases, right. The more that we give in to Con Ed year after year, or every couple of years, and keep giving them these -- these double-digit increases, they're going to keep coming back. It's like the dog that never stops begging, you know, you've got to stop. You've got to put an end to it.

And I'm calling on you guys to do that right now. And you know what? I also want to make it very clear that I am very upset that no one from

Con Edison is in this -- this room, and if there is, I apologize, but I don't think there is. Right?

The fact that they're requesting this because they think that they have this need, right? And they won't even have the audacity to show up to any of these -- these hearings, is a slap in the face to the public. Do better. Thank you.

UNIDENTIFIED SPEAKER: Yes, good job.

A.L.J. PLANTY: Thank you.

Next is Judah Holstein.

MR. HOLSTEIN: Good evening. I'm Judah Holstein, J-U-D-A-H H-O-L-S-T-E-I-N. I am also a county legislator. I represent District 10, which is Eastchester, Tuckahoe, and New Rochelle. I actually spoke at the virtual hearings. And so you know, since I'm -- I'm also, I think, I'm the last speaker on your list. So you've heard from a lot of people. I'll try not to be too redundant.

But I will reiterate a few key points and maybe fill in a few blanks. You know, costs in general for the public are up, residents are struggling. Con Ed continues to make significant profits, almost 2 billion dollars last year, and

transferring it to shareholders. And they are failing operationally.

I actually have a personal story where I had an issue with being taken off the level -- level billing as a result of a -- confusion over a dispute that I was told would not affect it, and can't put it back up. They're not losing money. Con Ed shouldn't be making money on the backs of residents who have no choice -- I take that back. There is a choice I'm hearing from residents who are lowering their thermostats in the wintertime to try and alleviate some of the pain.

But by the way, the State Property Maintenance Code mandates that landlords and businesses cannot do that. They have to keep the temperature at 68 degrees. So for the average person in Westchester County, they are still impacted indirectly by the rate hikes, and they have no recourse.

You are the Public Service Commission -- that is the recourse, that is the check and balance to the system; you serve the public. Utilities are not a luxury. Coming off the heels of

a two-and-a-half year rate hike, residents need reprieve now more than ever. So I implore you, please deny another rate hike, not negotiate down from twelve percent, to eleven and thirteen percent, to a lower number that we feel like it's a win. Deny a rate hike. We need a break. Thank you.

A.L.J. PLANTY: Thank you. And that is the end of our registered speakers. I will now give anyone else who is here and wishes to speak, would like to come up and fill out a card and speak, the opportunity to do so.

I'll go off the record for just a couple of minutes to give people a chance to do that. Off the record, please.

(Off the record)

(On the record)

A.L.J. PLANTY: Thanks. Naymeerak?

MR. NAYMEERAK: Yes. It's pronounced Nay-mee-rak. And thank you guys for hosting this, and thank you, everyone, for showing up. So this is my --

A.L.J. PLANTY: I'm sorry to interrupt you, if you could just spell it just for the record.

MR. NAYMEERAK: Oh. Sorry about that.

A.L.J. PLANTY: Please, thank you.

MR. NAYMEERAK: It's N-A-Y-M-E-E-R-A-K.

A.L.J. PLANTY: Thank you.

MR. NAYMEERAK: So this is my first time at a gathering of this sort, so I'm sorry if I sound a little nervous.

A.L.J. PLANTY: That's okay.

MR. NAYMEERAK: Everyone has already spoken about how expensive it's getting and how the company is already very successful in making a lot of profit. And I don't want to put my foot in my mouth by saying this, but is this program, the rate hikes, is it also for New York City itself, or just for Westchester County?

A.L.J. COSTELLO: It's for the service territory for Con Edison. So it would be Westchester, New York City, Bronx, Staten Island, Queens, for every -- every locality in the service territory covered by Con Edison.

MR. NAYMEERAK: Okay. Thank you for clarifying that. So I've previously worked in public

housing, and one of the things that we have in public housing is called the utility allowance, which is what the HUD, the Federal system for Housing and Urban Development, gives to tenants in regards to paying their utility bills.

This rate hike, I think, would not only increase our bills personally, but also increase expenditure for the Federal Government at a very base level, because that utility allowance goes up every year for every single housing authority. That's all over New York. So that's NYCHA, inside New York City, which already pays around 200 million per year to Con Edison.

I have a couple of notes. Give me one second, please. So based on 2021 data for NYCHA that they released, NYCHA pays 45 million dollars per month, in 2021, to Con Edison. With these kinds of rate hikes, it would go up quite a bit, like it's eleven percent, 45 million per month, and that's in 2021.

And for 2022, they paid 540 million dollars to Con Edison. And that's again coming from our taxes. That is not coming from our paychecks

that we're given, you know, like we take the money home, that's our revenue, whatever we earn, and we're paying Con Edison for our bills, but it's also coming off of our taxes.

Everyone has already said it multiple times, it is a monopoly, we don't have a choice, but if they're going to monopolize the electricity usage and utilities for everyone in their service area, then they have a responsibility to serve us a little better.

UNIDENTIFIED SPEAKER: A lot better.

MR. NAYMEERAK: Oh. Yeah, a lot better. Again, yes, we have to pay for electricity, it's not -- the world doesn't run for free, you know. Everything has a cost behind it. And we understand that we have to pay the cost. But NYCHA, public housing, everyone pays into Con Edison in their service area, because no one has a choice, and they're just going to keep increasing year by year.

When I lived in the Bronx, I lived there for fourteen years, bills were always under 300 a month for a three-bedroom house. I moved up to Mount Vernon last year, and just this past winter,

bills went from 300 to 600. Both of my parents are diabetic, they both have arthritis, during the winter, they can't -- we can't realistically turn the heat down because the colder it gets, the more pain they're in. So during the winter, we have had to keep our heat 80 degrees in the house, and bills just kept coming in, higher and higher every single time.

We don't cook a lot with gas, again my parents are older. I'm the fourth of -- five children and they don't cook a lot. And it's not like we're getting, you know, food out every day either. But the gas bill, because of the heat during the winter, the bill -- I think we accumulated around 7,000 dollars over the course of four months this winter. And when we asked for a payment plan, which we are grateful for to Con Edison, they told us they would give us a payment plan for thirty years with, I believe it was 15 dollars a month or so.

I'm going to be sixty-four by the time we pay that off. I could die tomorrow. That's it, right? They want me to -- the electricity bill is in my name, and they want to pay that off until I'm sixty-five years old. It makes no sense. If they

could do a better payment plan, I was open to paying more. They said no. They have a rate that they want to stick to, which is fine. You know, that's their decision. But increasing these delivery rates on common people, and then also increasing it for housing authorities, NYCHA, and other public sectors is not right, because that again comes from federal taxes that we're already paying.

So at some point we've got to look at it and think, is this a private company where CEOs are getting paid millions in their salary, or is it a public company that's also making money off of our taxes? You know, it's -- it's all over the place. CEOs are getting millions, companies getting millions from public agencies, and everyone is forced to pay it.

Again, we do have to pay because it's utilities, we don't have a choice. But we should have -- we should feel better when we're paying these people. That's how I think. Sorry if I rambled.

A.L.J. PLANTY: Thank you. We have Bill Meyer.

MR. MEYER: Hi. Thank you for letting

me have this -- us to have this opportunity to speak. I'm here for the rate case --

A.L.J. PLANTY: I'm sorry to interrupt. Could you just spell your name for the record?

MR. MEYER: Oh. B-I-L-L M-E-Y-E-R.

A.L.J. PLANTY: Thanks.

MR. MEYER: My handwriting is that bad?

A.L.J. PLANTY: No. It's just for the record.

A.L.J. COSTELLO: We need it to be on the record.

MR. MEYER: Oh. Oh. Okay. Thank you. Thank you. Thank you. Anyway, I'm here for the rate case, rate increase, hike. This is speaking to Con Edison. I think we're speaking at -- speaking to.

A.L.J. COSTELLO: Not speaking to. We work for the Department of Public Service.

MR. MEYER: Okay. Okay. So you're hearing my comment regarding the rate hike.

A.L.J. COSTELLO: Correct.

MR. MEYER: Okay. I believe that Con Ed has been abdicating their duty in holding back, deferring maintenance for so long. As a public-private company, they have been reaping profits for the private sector for a long time, years, decades, while deferred maintenance has been going on. I think it's time for the private company to raise funds elsewhere besides the ratepayers.

It's going to be a burden on the ratepayers. I'm in Mount Kisco. I had a situation in our neighborhood where we had a reported gas leak and a faulty transformer, and we kept reporting this. It took about two years before Con Ed came out to fix it. I think that's kind of a hazardous condition. Every time it rained, we'd get like a light show. You know, the transformer would blow up and give us a lightning storm. It was scary.

But it's not the role of the ratepayer to fix the problems that Con Edison has exacerbated through their own inaction. So I'd just like to remind Con Ed as well, that they serve at the pleasure of the people. And if they create an exorbitant tax hike -- or sorry, rate hikes that we

can't afford, we can always advocate for another supplier in the area which has been on the table sometimes on and off.

So I would like to, you know, ask for RFP for new service providers if they do go ahead with this rate hike. Thank you very much.

A.L.J. PLANTY: Thank you. It's the end of our list of speakers. I'd like to remind everyone that there are other ways you may submit comments. As I said before, you can do so online at www.dps.ny.gov. You can mail a comment to the Honorable Michelle L. Phillips, Secretary, Public Service Commission, 3 Empire State Plaza, Albany, New York 12223. And there's also a toll free opinion line set up to receive calls from in-state callers twenty-four hours a day. And that's 1-800-335-2120.

And all of this information about the other means to submit a comment is in the notice for these hearings.

I'd also like to draw your attention to the fact that tomorrow, July 10th, there are hearings at 1 p.m. and 6 p.m. at the C.W. Mixon Center, in Queens, New York. That's at 112-50

Springfield Boulevard. And tomorrow, July 10th, also at 1 p.m. and 6 p.m. we'll have hearings at the Residence Inn, Marriott, at 1776 Eastchester Road, and that's in the Bronx. And then on July 22nd and July 23rd at 6 p.m., at the Jewish Community Center of Staten Island, the Bernikow Building, at 1466 Manor Road.

I'd like to thank all of you, first and foremost, for taking the time to be here today and participating. I'd just like to also thank the Department of Public Service staff, the translation staff, the court reporter, the Westchester County Police Department, and the Westchester County Center and its staff. Thank you.

The hearing is now concluded, and we're off the record.

(The hearing concluded at 7:30 p.m.)

7/09/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

I, JOHN SHEFFIELD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 77, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 14th day of July, 2025.

JOHN SHEFFIELD, Reporter